

26LBCV00942 26LBCV00942

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C08%2F20%2F2026

Source SHA-256: b5fd18ebc6532e4aa98aeb10a9d794e9b03b12f80c4fc65377c2fa9a79fe151c

Case Number: 26LBCV00942 Hearing Date: August 20, 2026 Dept: S27

Background Facts

Plaintiffs, Rodney Sims and Pamela

Campbell, in their individual capacities and as heirs and

successors-in-interest to Sharon Marie Campbell filed this action against

Defendants, Long Beach Healthcare Center, Calvin Warraen, Frederick Galapon,

St. Francis Medica Center, Ananjit Singh, and Marilou Salao for elder abuse and

related claims. Plaintiffs filed their

original complaint on 4/16/26 and their operative First Amended Complaint on

6/03/26.

Demurrer

a.

Meet and Confer

CCP section 430.41 requires that

“[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

(CCP §430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP §430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP §430.41(a)(3).)

b. Analysis

Defense Counsel declares he emailed Plaintiffs about the perceived defects in the FAC on 6/30/26 and Plaintiffs did not respond. Plaintiffs, in opposition to the demurrer, do not address their failure to meet and confer.

Defense Counsel's declaration states that a copy of the meet and confer correspondence is attached as Exhibit 2 to the declaration. There are no exhibits to the declaration. Compounding the problem, the declaration states the letter addressed perceived problems with the failure to file a successor-in-interest and "factual deficiencies," but the Court is not clear on exactly what was addressed.

The parties' meet and confer efforts do not satisfy the Code. Defendants were required to attempt to meet and confer in person or by telephone, not via email. Plaintiffs were required to respond.

The Court will not do the parties' work for them. The hearing on the demurrer is continued to 9/21/26, the same date and time as the currently scheduled Case Management Conference. The parties must meet and confer in compliance with the Code within the next week. If they resolve all issues, they must take the demurrer off calendar using the online case reservation management system. If they fail to resolve all issues, they must file declarations detailing their meet and confer efforts and clarifying what, if any issues, were resolved by way of the meet and confer efforts.

Defendants are ordered to give notice.